

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
RENE SAURI-CRUZ and MIKE BARRETO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYPD SERGEANT
JONATHAN CARTER, SHIELD NO. 1917 (FORMER
SHIELD NO. 27848), NYPD DETECTIVE SCOTT
PATTERSON (RETIRED), SHIELD NO. 31351, NYPD
DETECTIVE JOSE SANTIAGO, SHIELD NO. 4114
(FORMER SHIELD NO. 4107), and NYPD POLICE
OFFICERS JOHN AND JANE DOES NUMBERS ONE
THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiffs designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 6, 2023

Yours, etc.

Lara Belkin

Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
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New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 1000

NYPD SERGEANT JONATHAN CARTER, SHIELD NO. 1917, 34TH PRECINCT,
4295 BROADWAY, NEW YORK, NY 10033

NYPD DETECTIVE SCOTT PATTERSON (RETIRED), SHIELD NO. 31351, 1
POLICE PLAZA, NEW YORK, NY 10038

NYPD DETECTIVE JOSE SANTIAGO, SHIELD NO. 4114, JOINT TERRORISM
TASK FORCE, 1 POLICE PLAZA, NEW YORK, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RENE SAURI-CRUZ and MIKE BARRETO,

Plaintiffs,

INDEX NO.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD SERGEANT
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SHIELD NO. 27848), NYPD DETECTIVE SCOTT
PATTERSON (RETIRED), SHIELD NO. 31351, NYPD
DETECTIVE JOSE SANTIAGO, SHIELD NO. 4114
(FORMER SHIELD NO. 4107), and NYPD POLICE
OFFICERS JOHN AND JANE DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs **RENE SAURI-CRUZ and MIKE BARRETO**, by their attorneys, Shulman-Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. **RENE SAURI-CRUZ**, on or about August 9, 2017, at approximately 9:30 a.m., while at the 40th Police Precinct, located at 257 Alexander Avenue, County of The Bronx, State of New York and **MIKE BARRETO**, on or about August 28, 2017, around noon, while at the Bronx Criminal Court, located at 215 East 161st Street, County of the Bronx, State of New York. Plaintiffs were subjected to approximately four (4) and five (5) years, respectively, in unlawful custody before they were acquitted of murder and criminal possession of a weapon at trial on November 4, 2022. Plaintiffs were subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant police officers. In doing so, defendant officers caused serious physical and emotional injuries to Plaintiffs. Plaintiffs were deprived of their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiffs **RENE SAURI-CRUZ and MIKE BARRETO** are residents of the State of New York.

3. NYPD Sergeant Jonathan Carter, Shield No. 1917 (Former Shield No. 27848), is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Sergeant Jonathan Carter, Shield No. 1917 (Former Shield No. 27848) is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, NYPD Sergeant Jonathan Carter, Shield No. 1917 (Former Shield No. 27848) was assigned to the 40th Precinct, and currently assigned to the 34th Police Precinct of the NYPD.

6. NYPD Detective Scott Patterson (Retired), Shield No. 31351 is and was at all times relevant herein an Officer with the New York City Police Department.

7. NYPD Detective Scott Patterson (Retired), Shield No. 31351 is being sued in their individual and official capacity.

8. Currently and at all times relevant herein, Detective Scott Patterson (Retired), Shield No. 31351 was assigned to the Detective Borough Bronx Nightwatch of the NYPD.

9. NYPD Detective Jose Santiago, Shield No. 4114 (Former Shield No. 4107) is and was at all times relevant herein an Officer with the New York City Police Department.

10. NYPD Detective Jose Santiago, Shield No. 4114 (Former Shield No. 4107) is being sued in their individual and official capacity.

11. Currently and at all times relevant herein, Detective Jose Santiago, Shield No. 4114 (Former Shield No. 4107) was assigned to the 40th Precinct, and currently assigned to the Joint Terrorism Task Force of the NYPD.

12. NYPD Police Officers John and Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. NYPD Police Officers John and Jane Does Numbers One Through Ten are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, Plaintiffss testified at a hearing held pursuant to General Municipal Law Section 50-H on March 17, 2023.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiffs has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On or about August 9, 2017, at approximately 9:30 a.m., while at the 40th police precinct, located at 257 Alexander Avenue, County of The Bronx, State of New York, **RENE SAURI-CRUZ**, was unlawfully arrested by defendant Jose Santiago.

22. **MIKE BARRETO**, on or about August 28, 2017, around noon, while lawfully at the Bronx Criminal Court, located at 215 East 161st Street, County of the Bronx, State of New York, was unlawfully arrested by defendant officer Jose Santiago.

23. At the above time, Plaintiffs were at the aforementioned location, when they were falsely arrested and wrongfully accused for an incident that occurred on March 18, 2016.

24. Plaintiff **RENE SAURI-CRUZ**, was scheduled to meet with his parole officer, at the aforementioned location, when he was approached by defendant officers and asked to accompany him to 40th Precinct. While at the precinct client was asked if he woud answer

some questions and he refused. Defendant officers then asked the client to turn around and handcuffed him.

25. Defendant Santiago lacked any probable cause to arrest **RENE SAURI-CRUZ** at the time.

26. Upon information and belief, this arrest was made based on an uninvestigated tip by a non-eyewitness to the shooting.

27. Plaintiff **MIKE BARRETO**, while serving time at Rikers Island Correctional facility, was informed said day that he had to appear in court. Plaintiff was then transported to the Bronx Criminal Court, where he was fingerprinted, photographed then told that he was being rearrested and charged for an incident that occurred on March 18, 2016.

28. Upon information and belief, while Plaintiffs were in custody, the defendant officers coerced Ramon Pantoja into identifying Plaintiff **RENE SAURI-CRUZ** as the shooter in the March 16, 2016 crime and **MIKE BARRETO** as the getaway driver.

29. While Plaintiffs were in custody, defendant officers transmitted false and misleading statements to prosecutors, causing them to be charged with multiple felonies, including conspiracy to commit murder.

30. Upon information and belief, and in violation of NYPD Protocol, during the investigation, defendant Santiago negligently failed to memorialize conversations with key cooperating witnesses, Ramon Pantoja and Nicholas Hernandez.

31. Plaintiffs refused multiple plea offers from prosecutors and consistently proclaimed their innocence during their incarceration.

32. By the time of Plaintiffs' trial, the entire homicide file was mysteriously lost.

33. On November 3, 2022, Plaintiffs were acquitted of all charges against them by a jury.

34. All charges against Plaintiffs were dismissed and sealed.

35. After spending approximately 4 years in custody, **MIKE BARRETO** was finally released from custody on November 3, 2022.

36. After spending approximately 5 years in custody, **RENE SAURI-CRUZ** was finally released from custody on November 3, 2022.

37. Some of the defendant officers observed the violation of Plaintiffs rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, detaining and confining Plaintiffs.

38. The unlawful arrest, confinement, invasive search and detention by the individually named defendants caused the Plaintiffs to sustain psychological, physical and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

39. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

40. The individually named defendant officers, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional, physical and psychological injuries.

SECOND CAUSE OF ACTION

False Imprisonment

42. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs was conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived Plaintiffs of her rights under the United States Constitution.

45. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional, physical and psychological injuries.

THIRD CAUSE OF ACTION

Violation of Plaintiffs's Fourth and Fourteenth Amendment Rights: Excessive Force

46. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

47. The use of excessive force by defendants by, amongst other things, seizing, tightly handcuffing him, and strip searching him constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FOURTH CAUSE OF ACTION

Failure to Intervene

48. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

49. The defendants that did not physically touch Plaintiffs, but were present when other officers knowingly violated Plaintiffs's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

50. Defendants failed to intervene to prevent the unlawful conduct described herein.

51. As a result of the foregoing, Plaintiffs suffered significant mental, physical and emotional injuries, their liberty were restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

52. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the United States Constitution.

53. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional, physical and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

54. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

55. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

56. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

57. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

58. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

59. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

SIXTH CAUSE OF ACTION

42 U.S.C. 1983 and State Law

Malicious Prosecution

60. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

61. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

62. Defendants commenced and continued a criminal proceeding against Plaintiffs.

63. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.

64. The prosecution and criminal proceedings terminated in Plaintiffs's favor on the aforementioned dates.

SEVENTH CAUSE OF ACTION

Negligence

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

66. Defendants owed a duty of care to Plaintiff.

67. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing him.

68. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

69. All of the foregoing occurred without any fault or provocation by Plaintiff. 48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the defendant officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries

EIGHTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

72. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

73. Such conduct breached the protections guaranteed to Plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

74. As a direct and proximate result of defendants' deprivations of Plaintiffs's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

75. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

76. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

77. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 6, 2023

By: Lara Belkin
Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza
15th Floor
New York, New York 10004
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TO: THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

NYPD SERGEANT JONATHAN CARTER, SHIELD NO. 1917, 34TH PRECINCT,
4295 BROADWAY, NEW YORK, NY 10033

NYPD DETECTIVE SCOTT PATTERSON (RETIRED), SHIELD NO. 31351, 1
POLICE PLAZA, NEW YORK, NY 10038

NYPD DETECTIVE JOSE SANTIAGO, SHIELD NO. 4114, JOINT TERRORISM
TASK FORCE, 1 POLICE PLAZA, NEW YORK, NY 10038

ATTORNEY'S VERIFICATION

LARA BELKIN, ESQ. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs does not reside in the county wherein I maintain my office.

DATED: New York, New York
 July 6, 2023

Lara Belkin
LARA BELKIN